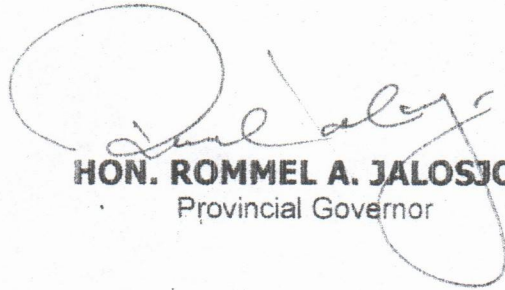


**APPROVED** by His Honor, the Governor,  
on OCT 15 2013 in the province of Zamboanga Sibugay, Philippines.

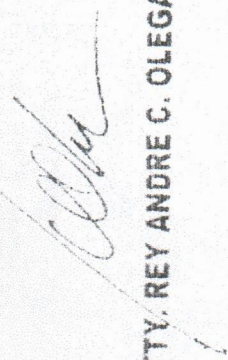
  
**HON. ROMMEL A. JALOSJOS**  
Provincial Governor

**HON. EUFEMIO D. JAVIER**  
Board Member, 2nd District  
AUTHOR



**PROVINCIAL SECRETARY'S OFFICE**  
Sangguniang Panlalawigan  
Province of Zamboanga Sibugay  
062-9260307-99086765905

**ORDINANCE NO. 2012-388**

  
**ATTY. REY ANDRE C. OLEGARIO**



*Handwritten signature/initials*

ATTY. REY ANDRE C. OLEGARIO

**Section 6. Violation Committed by a Firm, Corporation, Partnership, or Other Juridical Entity.** - If the violation is committed by a firm, corporation, partnership or other Juridical entity, the manager, the managing partner or director or person in charge of such firm, corporation, partnership, or juridical entity shall be held liable therefor. Any establishment found guilty shall be allowed to resume its business operations upon payment of the corresponding penalty and when subsequent water sampling testing will show favorable result.

**Section 7. Violation Committed by Mobile Water Tankers.** In the case of Mobile Water Tankers (for potable water), the same shall be impounded after paying the imposable fine and until the requirement herein imposed shall have been complied with and fully satisfied.

**Section 8. Implementing Guidelines** - The Office of the Provincial Governor shall formulate the Implementing Guidelines in the proper implementation of the foregoing ordinance.

**Section 9. Repealing Clause** - All ordinances, resolutions or laws of local application and effect inconsistent hereto are hereby modified, superseded, and repealed accordingly.

**Section 10. Separability Clause** - If, for any reason or reasons, any part or provision hereof shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

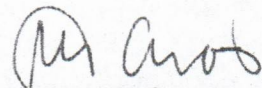
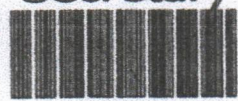
**Section 11. Effectivity** - This ordinance shall take effect immediately upon approval.

**ENACTED** during the **87<sup>th</sup> Regular Session** of the **4<sup>th</sup> Sangguniang Panlalawigan** of the Province of Zamboanga Sibugay on December 08, 2012 at Ipil, Zamboanga Sibugay, Philippines.

**I HEREBY CERTIFY**

that this is a true and accurate  
Copy of **ORDINANCE NO. 2012-382**  
of the Province of Zamboanga Sibugay duly  
enacted on **October 8, 2012**

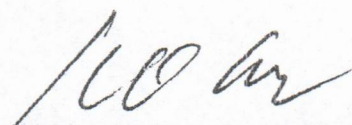


  
**NICASIO M. PEÑA, AB, LLB.**  
**Secretary**  


HON. EUFEMIO D. JAVIER  
Board Member, 2nd District  
AUTHOR

**ATTESTATION/CERTIFICATION**

**I HEREBY ATTEST and CERTIFY** that I presided over the **87<sup>th</sup> Regular Session** of the **4<sup>th</sup> Sangguniang Panlalawigan** of the Province of Zamboanga Sibugay and that the foregoing legislative measure has been **approved and enacted** during the aforesaid session.

  
**ATTY. REY ANDRE C. OLEGARIO**  
Presiding Officer, Provincial Vice Governor

ATTY. REY ANDRE C. OLEGARIO

c. **Operational permit** - (from DOH Regional Office).

d. **Certificate of Potability of Drinking water Clearance** - (from local health office).

2.5 That all **WRS** are required to submit their product for mandatory water analysis to be undertaken exclusively by an accredited water laboratory that will ascertain that water is properly processed and safe. Water testing are conducted monthly and bi-annually (every 6 months) for bacteriological examination and physical and chemical examinations, respectively;

2.6. That all water refilling stations are required to submit an approved plans and specification (blue printed) duly signed and sealed by a private sanitary engineer to see to it that there is no cross connection whatsoever and if they religiously comply with their plans and specifications.

2.7. That all **WRS, MWT, and DWR** are mandated to post their permits and licenses in a conspicuous place of their respective establishments or place of actual operation.

2.8. That LGU waterworks system shall be included in the regulation and sanitary requirement for development of drinking water supply system.

**Section 3. Regulatory Fees.**-The regulatory fees are to be imposed pursuant and in accordance with the Implementing Rules and Regulations which will be formulated before the actual implementation of this ordinance. That the regulatory fees for building and sanitary permits shall be imposed by LGU'd concerned.

**Section 4. Prohibited or Regulated Act or Omission.** - It shall be unlawful for any **WRS** to conduct other business, services, or to display, store other items, offer other services or business such as lotto station, laundry services, or phone, prepaid cellular phone loads or stores) in the said establishment other than **WRS** materials or services.

**Section 5. Penalty Clause.** - Any person or persons, natural or juridical, found violating any provisions of this ordinance or for failure or refusal on the part of **WRS, MWT, and DWR** to comply with the requirements in the implementing guidelines, shall be penalized in the following manner:

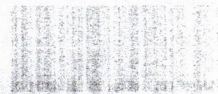
**First Offense** - A fine of Five Hundred Pesos (Php 500.00).

**Second Offense** - A fine of Two Thousand Pesos (Php 2,000.00).

**Third Offense** - Cancellation of Business Permit.

A **Voluntary fine**, in lieu of prosecution, in the amount of Two Thousand Pesos (Php 2,000.00) may be availed of by tendering payment thereof with the Office of the Provincial Treasurer.

HON. EUFEMIO D. JAVIER  
Board Member, 2nd District  
AUTHOR



10  
MAY 14 2014

**WHEREAS**, there is a need to provide an ordinance that will set and impose regulatory fees on different services and certifications in connection therewith;

**WHEREAS**, with the large growing numbers of water refilling stations, water retailers, and mobile water tankers now in place, there is a need to monitor such business operations to promote and protect the consumers against waterborne diseases and illegitimate operations;

**WHEREAS**, to ensure safe, high quality, and potable drinking water being processed and distributed within the Province of Zamboanga Sibugay, there is a need to provide an active water regulatory system by enacting an ordinance for the purpose;

**NOW THEREFORE**, in session duly assembled,

**THE SANGGUNIAN PANLALAWIGAN  
of ZAMBOANGA SIBUGAY**

**ORDAINED** that:

**Section 1. Title** — This ordinance shall be known and thereafter referred to as "**AN ORDINANCE REGULATING, EVALUATING, AND MONITORING THE OPERATIONS OF WATER REFILLING STATIONS (WRS), MOBILE WATER TANKER (MWT), AND DRINKING WATER RETAILERS (DWR) WITHIN THE PROVINCE OF ZAMBOANGA SIBUGAY, AND PROVIDING PENALTIES FOR VIOLATION THEREOF**".

**Section 2. Administrative Regulations and Requirements** - The following regulations and requirements, for implementation purposes of the foregoing ordinance, are hereby declared mandatory and shall be complied with:

- 2.1 That all **WRS**, **MWT**, and **DWR** shall submit themselves to Zamboanga Sibugay Provincial Health Department, or to their duly authorized representative, for a mandatory water sampling inspection and extensive monitoring, when already in place.
- 2.2 That all **WRS**, **MWT** and **DWR** shall secure the necessary sanitary permit with the Municipal Health Office before actual commencement of its operation.
- 2.3 That all persons employed, directly or indirectly, with any **WRS**, **MWT** and **DWR** shall secure health certificate to be issued by the concerned government local health office.
- 2.4 That all **WRS** and **DWR** must secure initial and operational permit from the Department of Health (DOH) Regional Office by satisfying the following:
  - a. **Drinking Water Site Clearance** - (from local health office).
  - b. **Initial permit** (Notice to Proceed) - (from DOH Regional Office).

ATTY. REY ANDRE C. OLEGARIO

HON. EUFEMIO D. JAVIER  
Board Member, 2nd District  
AUTHOR

# The 87<sup>th</sup> Regular Session 4<sup>th</sup> SANGGUNIAN PANLALAWIGAN

Room 320-321, 3<sup>rd</sup> Floor, Capitol building, Ipil Heights, Ipil, Zamboanga Sibugay, Philippines [secnmp@gmail.com](mailto:secnmp@gmail.com)



## OFFICIALS

GOV. ROMMEL A. JALOSJOS  
CONG. ROMEO M. JALOSJOS  
CONG. JONATHAN C. YAMBAO

### SANGGUNIAN PANLALAWIGAN

☐ HON. REY ANDRE C. OLEGARIO  
*Vice-Governor, Presiding officer*

\* HON. ERIC A. CABARIOS  
*Pro-Tempore*

\* HON. CRESCENCIO S. JORE  
*Mayor, District Leader*

☐ HON. WILBORNE S. DANDA  
*Mayor, Assistant District Leader*

#### 1<sup>ST</sup> DISTRICT

☐ HON. CRESCENCIO S. JORE  
*Chairman, Trade and Management Training*

☒ HON. ERIC Y. PALMA  
*Chairman, Rules and Good Government*

☐ HON. ABDUSALAM A. AHIRON  
*Chairman, Public Safety, Police, Fire, and Transportation*

☐ HON. EDITHA O. CALONGE  
*Chairman, Health and Social Services*

☐ HON. FLORDELIZ C. CURIBA  
*Chairman, Education, Science and Family Services*

#### 2<sup>ND</sup> DISTRICT

☐ HON. EUFEMIO D. JAVIER  
*Member, Rules, Women and Family, and Human Rights, Labor and Justice*

\* HON. ERIC A. CABARIOS  
*Chairman, Trade*

☐ HON. JOSE V. ABALDE  
*Chairman, Trade and Information, Field, Works, and Engineering*

☐ HON. JOEL D. EBOL  
*Chairman, Appropriations, Agriculture and Fisheries, Cooperative, NPT, and Environment*

☐ HON. WILBORNE S. DANDA  
*Chairman, Indigenous Peoples, Culture and Commission on Government and National Development*

#### Sectoral Representatives

☒ HON. BENHAJAR E. TANDIH  
*President, Sangguniang Pangasinan*

☐ HON. MUJAHID C. JAJURIE  
*President, Sangguniang Pangasinan*

☐ HON. KATRINA ANN V. PALMA  
*President, Sangguniang Pangasinan*

#### Legend

☐ Present

\* On Leave

☒ On Official Business

☐ Absent

Republic of the Philippines

## PROVINCE OF ZAMBOANGA SIBUGAY

Municipality of Ipil

**EXCERPT** from the minutes of the 87<sup>th</sup> Regular Session of the 4<sup>th</sup> Sangguniang Panlalawigan of the Province of Zamboanga Sibugay held on October 8, 2012, at the Provincial Capitol Complex, Ipil Heights, Ipil, Zamboanga Sibugay, at exactly 9:00 o'clock in the morning.

## ORDINANCE NO. 2012-382

**AN ORDINANCE REGULATING, EVALUATING, AND MONITORING THE OPERATIONS OF WATER REFILLING STATIONS (WRS), MOBILE WATER TANKER (MWT), AND DRINKING WATER RETAILERS (DWR) WITHIN THE PROVINCE OF ZAMBOANGA SIBUGAY, AND PROVIDING PENALTIES FOR VIOLATION THEREOF.**

**HON. EUFEMIO D. JAVIER**

Author, Board Member, 2<sup>nd</sup> District  
Member, Rules, Women and Family, and  
Human Rights, Labor and Justice

### EXPLANATORY NOTE

**WHEREAS**, under Republic act 7160, Otherwise known as the local Government Code of 1991, the Sangguniang Panlalawigan, as a legislative body of the province, shall enact ordinances that will ensure and support, among other things, promote general health and safety of their constituents;

**WHEREAS**, on January 20, 1997, Implementing Rules and Regulations of Chapter II of the Water Supply provisions of the Code was formulated. On June 25, 1999 the Supplemental Implementing Rules and Regulation (SIRR) of Chapter II "water supply" of the Code on Sanitations of the Philippines (PD 856) was promulgated with a primary objective of regulating and monitoring the operations of **WRS**, **MWT**, **DWR** as stipulated on various sections of the SIRR specifically sections 3.1.3, 3.4.2c, 4.1.3G, 5.1.1, 9.1.5, and 10.2;

ATTY. REY ANDRE C. OLEGARIO

HON. EUFEMIO D. JAVIER  
Board Member, 2<sup>nd</sup> District  
AUTHOR